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CLERK OF STATE COURT
RIVERTON COUNTY
26-CV-04417
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Patrice Holm, Clerk

**IN THE STATE COURT OF RIVERTON COUNTY**

JOHN DOE,
Plaintiff,

v.

ROBERT SMITH,
Defendant.

CIVIL ACTION
FILE NO. 26-CV-04417

**JURY TRIAL DEMANDED**

## COMPLAINT FOR DAMAGES

COMES NOW Plaintiff John Doe, by and through his undersigned counsel, and files this Complaint for Damages against Defendant Robert Smith, showing the Court as follows:

## PARTIES, JURISDICTION AND VENUE

1. Plaintiff John Doe is an adult individual and a resident of Riverton, Riverton County.

2. Defendant Robert Smith is an adult individual and a resident of Riverton County, who may be served with process at his residence, 118 Larkspur Ln, Riverton, or wherever he may be found.

3. Defendant is subject to the jurisdiction of this Court.

4. Venue is proper in this Court because Defendant resides in Riverton County and the collision described below occurred in Riverton County.

## FACTS

5. On February 6, 2026, at approximately 7:10 a.m., Plaintiff was a passenger, seated in the front passenger seat of a 2020 Ford Escape owned and operated by Kevin Alvarez, traveling eastbound on Maple Hollow Rd in Riverton.

6. The intersection of Maple Hollow Rd and Birch Ave is controlled by stop signs in all directions.

7. The Escape came to a complete stop at the stop sign on Maple Hollow Rd and then proceeded into the intersection.

8. At the same time, Defendant was operating a 2017 Chevrolet Silverado northbound on Birch Ave, approaching the intersection.

9. Defendant failed to stop at the stop sign controlling northbound traffic on Birch Ave and drove into the intersection.

10. The front of Defendant's Silverado struck the front passenger door of the Escape, where Plaintiff was seated, and pushed the Escape into Plaintiff's 2019 Honda Civic LX, which was lawfully parked at the east curb of Birch Ave.

11. At the time of the collision, Plaintiff was wearing his seatbelt.

12. The Riverton Police Department investigated the collision (Report No. RPD-26-018842) and cited Defendant for failure to stop at a stop sign.

13. As a direct and proximate result of the collision, Plaintiff suffered bodily injuries, including a cervical strain and a C5-C6 right paracentral disc herniation with mild right foraminal narrowing, with radiating numbness into his right arm and hand.

14. Plaintiff reported neck pain at the scene and has since received medical treatment, including urgent care, chiropractic care and physical therapy, orthopedic care, a cervical MRI, and a cervical epidural steroid injection. On June 12, 2026, his orthopedic physician found that he had reached maximum medical improvement with residual intermittent right-arm paresthesia, and recommended possible further epidural steroid injections.

## COUNT I — NEGLIGENCE

15. Plaintiff incorporates paragraphs 1 through 14 as if fully restated.

16. Defendant owed Plaintiff and the traveling public a duty to exercise ordinary care in the operation of his vehicle.

17. Defendant breached that duty by, among other things:

a. failing to stop at a stop sign;

b. failing to yield the right-of-way to a vehicle that had stopped and lawfully entered the intersection;

c. failing to keep a proper lookout;

d. failing to reduce speed when approaching and entering an intersection; and

e. failing to maintain proper control of his vehicle.

18. Defendant's negligence was the direct and proximate cause of the collision and of Plaintiff's injuries and damages.

## COUNT II — NEGLIGENCE PER SE

19. Plaintiff incorporates paragraphs 1 through 18 as if fully restated.

20. Defendant violated the traffic laws of this State requiring a driver approaching a stop sign to stop before entering the intersection and to yield the right-of-way to vehicles in or approaching the intersection.

21. Those laws were enacted to protect persons in Plaintiff's position from the type of harm Plaintiff suffered. Defendant's violation of them is negligence per se, and was the direct and proximate cause of Plaintiff's injuries and damages.

## DAMAGES

22. As a direct and proximate result of Defendant's negligence, Plaintiff has suffered and will continue to suffer the following damages:

a. past medical expenses in the amount of $14,817.40;

b. lost wages in the amount of $1,584.00;

c. future medical expenses, presently estimated at $3,400.00 to $6,800.00;

d. past and future physical pain and suffering, mental and emotional distress, and loss of enjoyment of life; and

e. damage to his property, his 2019 Honda Civic LX, including loss of use of the vehicle for the 48 days on which he had neither his vehicle nor a paid rental vehicle ($2,016.00), and the diminished value of the vehicle after structural repair ($3,600.00).

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays:

a. that process issue and Defendant be served as provided by law;

b. that Plaintiff have a trial by jury on all issues so triable;

c. that Plaintiff have judgment against Defendant for special damages for past medical expenses, future medical expenses and lost wages, in amounts proven at trial;

d. that Plaintiff have judgment against Defendant for general damages for pain and suffering in an amount determined by the enlightened conscience of the jury;

e. that Plaintiff have judgment against Defendant for his property damage, including loss of use and diminished value;

f. that all costs of this action be taxed against Defendant, with interest as allowed by law; and

g. for such other and further relief as the Court deems just and proper.

## DEMAND FOR JURY TRIAL

Plaintiff demands a trial by jury of twelve on all issues so triable.

Respectfully submitted this 24th day of September, 2026.

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